

Terms and Conditions for the Liv Credit Card

Credit Cards

Terms and Conditions for the Liv Credit Card ("Liv Credit Card Terms")

The following Liv Credit Card Terms are applicable to your Liv Credit Card. You can also find these Liv Credit Card Terms on our website at www.liv.me. Definitions of capitalized terms used in these Liv Credit Card Terms are set out in the Glossary below.

These Liv Credit Card Terms are in addition to the Terms and Conditions for Liv Services and the Liv Privacy Policy (each available on our website at www.liv.me), and should be read in conjunction with those terms.

Any rewards, points, discounts, promotions, competitions which may apply to your Liv Credit Card from time to time as offered by Liv (" Rewards") shall be subject to the terms and conditions set out in the Liv App by Liv or the relevant Partner offering access to such Rewards through the Liv App (each a **"Reward Program"**).

If there is any conflict or inconsistency between these Liv Credit Card Terms, the Terms and Conditions for Liv Services, a Reward Program, and any guidelines, agreement or other document specified by Liv relating to the Liv Card and Card Account (as defined hereunder), then these Liv Credit Card Terms shall prevail to the extent of that conflict or inconsistency.

By signing, activating or using a Card (or Card Account) or otherwise making use of the service related to the Card or Card Account, you have deemed to have read and understood these Liv Credit Card Terms and agree to be bound by them.

1. The Card

- 1.1.** The Card will be delivered to you in person to the address provided to us. Your Emirates ID must be available at the time of delivery to complete the KYC Process. The Card will be handed over to you only upon successful completion of the KYC Process. A failure or delay in the delivery of the Card that is not attributable to us may result in additional fees in accordance with the Fee Schedule.
- 1.2.** You must activate your card through the Liv App. Your activation of the Card is proof of delivery and will constitute binding and conclusive evidence of your receipt of the Card and acceptance of these Liv Credit Card Terms.
- 1.3.** A digital Card may be provided to you after you complete your Card application on the Liv App. You will need to activate the digital Card by following the in-app instructions in order to use the digital Card. Once the digital Card is activated, it can be used for all Card Transactions where a physical Card is not required up to the Credit Limit and in accordance with these Liv Credit Card Terms. You must schedule delivery of your physical Card within thirty (30) days of activation of your digital Card or we may block usage of your Card.
- 1.4.** If the KYC Process is not completed or fails for any reason, we may close the Card until the KYC Process is successfully completed to our satisfaction.
- 1.5.** Upon receipt of the Card, you must sign the Card immediately. If you do not wish to be bound by these Liv Credit Card Terms, you must notify us via the chat or email feature in the Liv App to cancel the Card. Upon cancellation of the Card, clause 12 will become operative.
- 1.6.** We reserve the right to cancel the Card at our absolute discretion with or without prior notice to you and in whatever circumstances we deem fit.

Statement of Account

- 1.7.** Liv shall provide you a Statement of Account on a monthly basis or at such intervals as Liv may decide. The Statement of Account shall be delivered in electronic form to the Liv App. and such delivered Statement of Account will be deemed to constitute an account statement as required by applicable law and shall for all purposes, satisfy Liv's obligations to deliver to you an account statement.
- 1.8.** It is your responsibility to review each Statement of Account and notify Liv of any discrepancy within thirty (30) days of receiving it, failing which the Statement of Account shall be deemed to be correct and accepted by you.

2. Supplementary card(s)

- 2.1.** We may agree to issue a Supplementary Card to a person nominated by you, subject to payment of applicable card fees and provision of all identification documentation of the Supplementary Cardholder as required by Liv .
- 2.2.** Each Supplementary Card will be of the same type as the Primary Card and will have the same Rewards of the Primary Card, subject to certain exclusions and fees in accordance with the applicable terms and conditions of the relevant rewards program. .
- 2.3.** These Liv Credit Card Terms will apply to the Supplementary Cardholder. The Primary Cardholder will be liable to pay any amount debited to the Supplementary Card, and will be jointly and severally liable with the Supplementary Cardholder for any Card Transaction relating to the Supplementary Card. .
- 2.4.** The Credit Limit applies to the Card Account, which shall be applicable to the Primary Cardholder and any Supplementary Cardholders. .
- 2.5.** The validity of the Supplementary Card will at all times be subject to the validity of the Primary Card. .
- 2.6.** The liabilities and obligations of the Cardholder(s) will not be affected in any way by any dispute between the Primary Cardholder and any Supplementary Cardholder.



- without notice and without giving any reason and without any liability to you, restrict your right to use the Card or refuse to authorize any Card Transaction.
- 3.2.** We may issue a PIN to you for use at any ATM that will accept the Card. You agree that you will be fully liable to us for all Card Transactions made with the PIN whether with or without your knowledge. .
- 3.3.** You must use reasonable precautions to prevent the loss or theft of the Card and must prevent the discovery of the PIN by any person and must not disclose the PIN to any person. .
- 3.4.** If the Card is lost or stolen or the PIN is disclosed to any person, you must immediately (i) notify us via the chat feature in the Liv App and (ii) use the "Card Block" option to safeguard against fraudulent usage. Unless both these steps are followed, you will be liable for all resulting Card Transactions. .
- 3.5.** We may issue a replacement for any lost or stolen Card and apply a fee for such replacement in accordance with the Fee Schedule. .
- 3.6.** You will be responsible for all transactions whether processed with your knowledge or by your express or implied authority when the Card is used at an ATM. .
- 3.7.** The amount of any transaction in a currency other than AED will be converted to AED at the rate of exchange prevailing on the date when the relevant transaction is debited to the Card Account. All such transactions will be subject to a foreign currency fee at the rate set out in the Fee Schedule. .
- 3.8.** You must stay within the Credit Limit. If you exceed the Credit Limit you must, in addition to the Current Balance, pay to us on our demand, the full sum by which the Credit Limit is exceeded and all related fees associated with exceeding the Credit Limit. In the event of your failure to pay this amount to us, the Current Balance will become immediately due and payable. .
- 3.9.** You understand that we have the right to determine, increase or reduce the Credit Limit and/or waive the Credit Limit fully or partially. You may be able to reduce or request an increase to the Credit Limit through the Liv App. .
- 3.10.** We may contact you for any reason, including without limitation to verify Card Transactions, perform a security check or in relation to a Card replacement. If we are unable to establish contact with you for any reason whatsoever, we may block your Card until contact is established to our satisfaction.

4. Payment

- 4.1.** You agree to pay to us all fees applicable to the Card in accordance with these Liv Credit Card Terms and as set out in the Fee Schedule and notified to you from time to time. You understand late payment fees, finance charges and other fees are applicable to your use of the Card.
- 4.2.** You accept that each Statement of Account is conclusive and binding evidence for all purposes. You agree to pay us the Current Balance on the Payment Due Date. If you chose not to settle the Current Balance in full, you must pay the Minimum Payment Due by the Payment Due Date.
- 4.3.** At our sole discretion and without prejudice to our rights under these Liv Credit Card Terms if you fail to pay the Minimum Payment Due on the Payment Due Date and the same remained unsettled till the date of the next Statement Date, we will add the unpaid amount to the next Statement of Account in addition to any Charges and/or applicable fees.
- 4.4.** Our acceptance of late or partial payments, any waiver by us or any indulgence granted to you will not prevent us from enforcing any of our rights under these Liv Credit Card Terms to collect the Current Balance or any amount due under these Liv Credit Card Terms nor will such acceptance operate to prevent us from enforcing any of our rights under these Liv Credit Card Terms to collect the amounts due hereunder nor will such acceptance operate as consent to the modification of these Liv Credit Card Terms in any respect.
- 4.5.** Any payments made by you in relation to the Card will be applied by us in the priority we deem suitable.
- 4.6.** You agree to make all payments in AED. If any payment is made in any other currency, we reserve the right to convert such currency to AED subject to our prevailing exchange rate as on the date of posting the payment into the Card Account. Any payment made in AED will be credited to the Card Account on the date that we received the funds. Whereas payment if received in any other currency, such payment will be credited to the Card Account after the date when the relevant funds have been received by us after conversion into the Card Currency.
- 4.7.** Without prejudice to our rights under these Liv Credit Card Terms, finance charges, late fees and/or any other fees implemented by us will continue to be chargeable on any sums of money, which remain due and unpaid after the exercise of any of those rights. If we obtain a judgment that any sum should be paid to us, such charges and fees will be payable on such sum from the date of such judgment until the date of full payment.
- 4.8.** If you effect any payment by depositing cash in any ATM or terminals designated by us, we will not be liable for any loss or delay caused by the use of the ATM or terminal. Any statement issued on making such deposit will only represent what you purport to have deposited and will in no way bind us as to its correctness.
- 4.9.** Any payment made via online banking or any other kind of bank transfer will only be regarded as having been received by us upon the clearing of the proceeds paid to us by the remitting bank. We will not be liable for any fees or charges levied by the remitting bank to you in effecting such payments to us.
- 4.10.** We may, at any time, vary the rate, method or calculation of the fees and charges set out in the Fee Schedule, Minimum Payment Due and/or any other fees or charges without obtaining your consent.
- 4.11.** We will treat the following as evidence of a debt properly incurred by you to be debited to the Card Account:
- (i)** Any sales draft, transaction record, credit voucher, cash disbursement draft and/or other charge record bearing the imprint or other reproduction of embossed information printed on the Card and duly completed irrespective of whether the same bears your signature. However, this does not in any way waive your responsibility to sign the sales draft/transaction record/credit voucher as requested by the merchant establishment; and/or
- (ii)** Our record of Cash Advances or of any other transactions effected by the use of the Card including but not limited to transactions effected via mail order, the telephone or the internet.
- 4.12.** If you pay us any amount which is in excess of the Current Balance of the Card, we retain the right as we deem necessary, to verify the reasons for such excess payments and accordingly to process or not to process such payments and to return the payments to you in a manner acceptable to us.
- 4.13.** If you default on any payment to us (whether in relation to the Card Account or otherwise), we will debit your Account with the Current Balance and/or any other amount arising and payable under these Liv Credit Card Terms and the provisions of clause 12 will be applicable.



ENBD, through whom such Cash Advances are provided. You acknowledge that in any Cash Advance transaction through an ATM you will use the PIN to effect the transaction.

5.2. Cash Advances are subject to certain fees and finance charges which will be applicable to each Cash Advance and will be applied on the amount of each Cash Advance transaction, as set out in the Fee Schedule. Finance charges will accrue on each Cash Advance from the date of the Cash Advance until repayment in full.

6. Card conversion

6.1. You may at any time notify us in writing through email or in-app chat of your desire to convert your existing Card to another Card offered by us. Your request will be subject to our approval and payment of any applicable fees for the purpose of conversion and issuance of the replacement Card. In the event the requested conversion is a downgrade, you will not be entitled to a refund of any annual (membership) fees paid in relation to the existing Card.

6.2. If we approve your request to convert your Card, all Charges under the existing Card Account will be transferred to the new Card Account. It is also understood that, if we approve the conversion, the rewards program or other benefits earned on the existing Card by virtue of the rewards program on the existing Card will not be converted into the rewards program or any other program or benefit of the converted Card.

7. Rewards and add-ons

7.1. Your Card is eligible for certain rewards programs subject to terms and conditions applicable to the relevant rewards program, as set out in the Liv App. You can opt-in and out of reward programs in accordance with the applicable reward program terms and conditions set out by Liv from time to time.

7.2. You will earn points for Card Transactions based on your selected rewards program. Point eligibility, point earning, point conversion and reward categories are subject to the terms and conditions of the selected rewards program.

7.3. We may make changes to the rewards programs at any time, including without limitation:

- (i)** changing how you earn and use points and reward categories;
- (ii)** adjusting the conversion rates from one reward program to another;
- (iii)** transferring rewards from one reward program at any time; and
- (iv)** changing reward thresholds, discounts, eligibility criteria and benefits.

Liv will use reasonable efforts to promptly post details of any change or variation on the Liv App.

7.4. You can switch between reward programs and change reward categories within a rewards program if this option is available to you in the Liv App. We may restrict your ability to choose a Reward Program.

7.5. Your Card may be eligible for certain add-on services subject to terms and conditions applicable to the relevant add-on service, as set out in the Liv App. If a fee is applicable to a selected add-on service, such fee will be billed to you pursuant to clause 4.

7.6. You acknowledge and agree that we may from time to time offer certain benefits, rewards and discounts through third party service providers or Merchants. Your use of these benefits, rewards and discounts shall be subject to the applicable terms and conditions set out by the relevant Partner or third-party service provider.

8. Instalment plan and balance conversion

8.1. Instalment plan

8.1.1. Your Card has the Credit Card Instalment Plan (" CCIP") option to enable you to purchase goods and services and repay the amount of selected purchases in equal monthly instalments in accordance with these Liv Credit Card Terms.

8.1.2. Under a CCIP Liv offers two options:

- a.** you will be offered selected offers that can be availed at 0% interest rate for a specified period, eligible amount and specified Merchants; or
- b.** a CCIP is offered on all transactions above a certain amount at a special interest rate, as specified by us from time to time.

8.1.3. The selected goods and services offered by the specific merchants and the number of monthly instalments to be paid (the " CCIP Term") for each good or service will be determined by Liv from time to time and communicated to you accordingly (the " Offer"). The CCIP Term will vary from one Offer to another and a CCIP Term cannot be shortened.

8.1.4. We will authorize a request for a CCIP subject to the sum of the purchase price and any applicable finance charges for the CCIP Term (the " Total CCIP Price") being within your available Credit Limit as determined by Liv

8.1.5. The equal monthly installment amount to be paid every month (an " Equal Monthly Instalment") will be computed by dividing the Total CCIP Price by the CCIP Term.

8.1.6. The Equal Monthly Instalments will be billed to you in the first Statement of Account after the date of purchase and every month thereafter until the Total CCIP Price is paid and settled in full.

8.1.7. When you make a purchase(s) under the CCIP, the Minimum Payment Due on the statement will be the sum of all Equal Monthly Instalment plus all other outstanding transactions multiplied by the required payment percentage determined by Liv and notified to you, plus any excess amounts over the Credit Limit and all past due amounts, if any.

8.1.8. If you pay less than the Minimum Payment Due on the due date specified in the Statement of Account, then applicable charges as set out in the Fee Schedule will apply.

8.1.9. You have the option to prepay the Total CCIP Instalment Price in one lump sum prepayment, subject to cancellation fee as specified In the Fee Schedule or determined by us at our sole discretion.



- 8.1.11.** If the Card is cancelled or terminated while a CCIP is still in effect, the CCIP will be cancelled, the entire outstanding amount under the CCIP will immediately become due and payable by you and Liv will have the right to demand the immediate payment thereof.
- 8.1.12.** We will not be liable for any damage or loss incurred by you arising out of a purchase, installation, use or otherwise of the good(s) and/or service(s) acquired under the CCIP as for any negligence, breach of statutory or other duty on our part nor will we be responsible in any way for the quality of the goods and/or services purchase under CCIP. Any complaint as to the quality of the goods purchased or services rendered through CCIP will be referred to the supplier or merchant and will not affect your obligation to continue paying the CCIP Monthly Instalments to us.
- 8.1.13.** We may at any time and without any prior notice or liability to you in any manner whatsoever terminate a CCIP or cancel or vary its benefits or features. However, such termination will not affect transactions concluded by you and accepted by us under the relevant CCIP after such action is taken. Liv is also entitled to determine a floor limit for the minimum amount of a purchase allowable under a CCIP for each particular Offer.
- 8.1.14..** We reserve the right to disqualify you from further participation in CCIP, if in our judgement you have in any way violated these Liv Credit Card Terms.
- 8.2.**Balance Conversion
- 8.2.1** Your Card is eligible for the Balance Conversion program (" BalCon"). BalCon enables you to convert your Card outstanding balance (either in full or a portion which is billed or unbilled) into Equal Monthly Installments in accordance with these Liv Credit Card Terms.
- 8.2.2** You can convert the Current Balance provided this is greater than AED 1,000, due to us, billed or unbilled, in part or in full, by placing a request for BalCon through the Liv App.
- 8.2.3** BalCon is only offered for the Current Balance on the day of your request and expressly excludes:
- (i)** any cash transaction and associated fees and charges (billed or unbilled);
 - (ii)** the aggregate of the amounts outstanding under any and all CCIPs; and
 - (iii)** any amount of such outstanding balance for which credit is received and/or payment is made on or after the date of a request by the Cardholder to avail of a BalCon.
- 8.2.4** If you make a partial payment on your Current Balance post placing a BalCon request irrespective the conversion will be processed as per amount selected by you on the day of the request.
- 8.2.5** The applicable monthly rate of interest and the processing fees charged to you will be communicated at the time of the BalCon being requested. The processing fee will be due and payable in full with the first Equal Monthly Instalment on the Statement of Account.
- 8.2.6** An Equal Monthly Instalment under a BalCon will be billed to the Card every month on the same date as per the billing cycle. Please note by availing BalCon the amount converted under the requested BalCon will be blocked. As and when Equal Monthly Instalments are paid, the instalment paid amount will be part of the available Credit Limit.
- 8.2.7** Prepayment charges on an early repayment of the BalCon will apply as specified by Liv in the Fee Schedule.
- 8.2.8** If you fail to pay any of the Equal Monthly Instalment, we reserve the right to terminate the BalCon and convert the entire outstanding amount under the relevant BalCon as a regular balance on the Card. In this case the entire outstanding will attract regular finance charges as applicable pursuant to the Fee Schedule.
- 8.2.9** You may apply more than once for BalCon provided you qualify for the BalCon in accordance with these Liv Credit Card Terms.
- 8.3.** The records of Liv (in the form of electronic or other date, whether written or otherwise) pertaining to a CCIP or BalCon will be final and binding on you and you will not argue to the contrary.
- 8.4.** Liv reserves the right to reject any request for a CCIP or BalCon for any reason whatsoever.

9. Disputes

- 9.1.** In the event that you wish to dispute a Card Transaction shown in your Statement of Account, you must notify us through the Liv App and follow the relevant instructions, including without limitation providing supporting documentation.
- 9.2.** You will remain fully liable for disputed Card Transactions unless we inform you otherwise. Non-payment will result in the levy of applicable fees and finance charges in accordance with the Fee Schedule.
- 9.3.** If a Card Transaction disputed by you is subsequently proved to have originated from you, we reserve the right to bill the Card Account the disputed amount with finance charges from the date the transaction took place.
- 9.4.** Any disputes must be notified to us within thirty (30) days from the date of the relevant Statement of Account. We will not be liable for any disputes brought to our notice beyond (30) days from the date of the relevant Statement of Account.
- 9.5.** We are not liable for any disputes relating to reward programs and add-on services offered by Partners and any such disputes must be resolved directly with the relevant Partner or add-on provider in accordance with the terms and conditions applicable to such reward program or add-on service as applicable.
- 9.6.** If at any time dispute arises in connection with these Liv Credit Card Terms, our decision in connection will be final and binding.
- 9.7.** The Card Account will only be credited with a refund in respect of Card Transaction upon receipt by Liv of the refund amount.

10. Representation and warranties

- By signing, activating or using a Card, submitting a request, performing a Card Transaction or otherwise making use of the Card or Card Account, you represent and warrant to Liv that:
- (i)** all the information you have furnished to Liv, as of the date that information is provided, is true, accurate and complete in every material respect;

11. Limitation of responsibility and Liability

- 11.1.** We will not be liable for any loss or damage suffered by you by reason of us, a Merchant, bank, a Partner, or a financial institution, any ATM, terminal or other party refusing to allow a Card Transaction, accept the Card, the PIN, or to extend or provide a Cash Advance up to the Credit Limit or at all.
- 11.2.** We will not be responsible for the refusal of any Merchant or member institution of MasterCard International/VISA International to honor or accept the Card or for any defect or deficiency in the goods or services supplied to you by any Merchant, or where applicable, for any breach of non-performance by a Merchant for Card Transactions.
- 11.3.** In the event of any dispute between you and any Merchant or other bank or financial institution or any other person, your liability to us will not in any way be affected by such dispute or any claim or right of set-off which you may have given against such Merchant or bank or financial institution or any other person.
- 11.4.** We will not be liable in any way to you for any loss or damage of whatever nature due to or arising from any disruption or failure or defect in any ATM, machinery, terminal, communication system or facilities or data processing system or transmission link, war or act of God, or any industrial or other dispute or anything or cause, whether beyond our control or otherwise nor will we be responsible for any delay in the transmission to us of evidence of a CCIP or a BalCon by the specified Merchants or any other third party nor for any block placed by us on the Card.
- 11.5.** In case of change in the Card number, it is solely your responsibility to ensure that this change is communicated to the relevant authorities or third parties, if you have given any standing instructions for recurring payments to be charged to the Card Account, including but not limited to utility bills and insurance premiums. This will allow the Charges to be debited to the new Card Account. Any fees, penalties and/or charges incurred by you charged by the relevant authorities due to failure and/or delay in updating this information with the relevant authorities will be completely borne by you and we cannot be held liable for the same.
- 11.6.** We are not liable for any issues faced with the redemption of, the subscription to or the use of an add-on service.

12. Termination

- 12.1.** You may notify us of your intention to close the Card by chat or email through the Liv App at any time. The Card Account will be closed only after the receipt of full payment of all Charges, and all Equal Amount Instalments under a CCIP or a BalCon, including but not limited to Card Transactions authorized but not yet billed to the Card Account, which will be payable immediately upon the termination of the Card in accordance with these Liv Credit Card Terms.
 - 12.2.** We may at any time close the Card Account, including without limitation upon your death or bankruptcy, and upon termination, all Charges will become immediately due and payable.
- In the event of the Primary Cardholder's bankruptcy or death, the Supplementary Cardholder(s) must immediately cease use of the Card(s).
- 12.3.** Each of the following shall constitute an event of default in respect of any Card (an "Event of Default"):
 - 12.3.1.** the Cardholder fails to make a payment on the due date of any amount due and payable under these Liv Credit Card Terms;
 - 12.3.2.** the Cardholder loses its residency status in the UAE;
 - 12.3.3.** the Cardholder becomes unemployed, dies, loses legal capacity or loses their primary source of income;
 - 12.3.4.** An attachment order is used against any property or assets of the Cardholder; or
 - 12.3.5.** the Cardholder breaches or threatens to breach any covenant, undertaking, term, condition or provisions under the Liv Credit Card Terms, the Terms and Conditions for Liv Services and fails to remedy any such breach or threat of breach within the time period stipulated by Liv
 - 12.4.** On and at any time after the occurrence of an Event of Default or upon termination of the Card and Card Account with prior notice, Liv has the right to:
 - 12.4.1.** require immediate settlement of all or part of the Charges and any and all amount outstanding under the Card;
 - 12.4.2.** Immediately enforce any Guarantee, collateral or security provided to Liv and exercise any if its rights in respect of such Guarantee, collateral or security
 - 12.4.3.** Retain any assets of the Cardholder in Liv and/or Emirates NBD Bank's possession.
 - 12.5.** On and at any time after the occurrence of an Event of Default or upon termination of the Card and Card Account, the Cardholder must cancel all payments into and out of the Card Account; and destroy any Cards.
 - 12.6.** Liv will not refund the annual membership fee in the event of the termination of the Card Account.
 - 12.7.** Upon closure of the Card Account, any security held by us will be held for a period not less than forty-five (45) days following the cancellation.
 - 12.8.** Notwithstanding the closure of the Card Account, you will be responsible for setting off outstanding balances on the Card Account and will keep us indemnified for the Charges and all costs and expenses (including legal fees) incurred in recovering such outstanding balances.

13. Documentation and guarantees

You undertake to provide all documentation requested by us from time to time, including without limitation a Guarantee. You may be required to maintain such Guarantee as long as there is any Current Balance on the Card Account. Failure to comply with such a request will be treated as a breach of these Liv Credit Card Terms.

You understand that the Guarantee may be used by us to settle the outstanding balance on the Card Account and you agree and authorize such use.

14. Assignment, waivers and amendments

- 14.1.** We will be entitled at any time without consent of you to assign the whole or any part of our rights, or obligations under these Liv Credit Card Terms to any other party at our sole discretion with or without notice to you.
- 14.2.** These Liv Credit Card Terms are binding upon you and no assignment of rights or obligations is permissible

If any term of these Liv Credit Card Terms is found to be unenforceable; we may still enforce the other terms.



14.5. We may, from time to time, and without notice to you amend these Liv Credit Card Terms. Such changes will apply on the effective date specified by us in the notification sent to you, if any, and will apply to all unpaid Charges.

15. Statement of account service using UAE FTS

- 15.1.** You provide consent (permission) during your digital onboarding and Card application for Liv to obtain and share your account information, including the details of transactions for the identified period, which is needed by Liv to determine eligibility and the Card Limit.
- 15.2.** The information provided will be shared and retained in accordance with applicable law concerning data security and privacy protection. You understand that some services may not be available to you unless you consent to share/release information as stated in this clause.
- 15.3.** By providing consent to this service, you consent and give permission to Liv to request your statement of account through the Central Bank of the United Arab Emirates, from your bank (as can be identified by the IBAN) and also for your bank to provide this information through the Central Bank of the United Arab Emirates, without the need for any additional consent.
- 15.4.** You must provide Liv your bank details, including your IBAN and you understand that have full responsibility for the provision and accuracy of this information.
- 15.5.** You represent that the account information you provide Liv pertains to an account held in your name and acknowledge that providing Liv with account information of a third party is considered a breach of the Liv Credit Card Terms and applicable law and will result in Liv taking legal action against you.

16. Taxes

All amounts and Charges (including fees and charges related to the Rewards) expressed to be payable by you are exclusive of any applicable taxes (including, but not limited to value added tax (or any equivalent tax). Liv is authorized to debit the Card Account of any applicable taxes required to be charged or withheld by Liv in this regard.

17. Confidentiality

- 17.1.** On an ongoing basis, you authorize us, to obtain information from the Al Etihad Credit Bureau, banks, collateral registries and other financial institutions, your employer or any other body as Liv deems appropriate, about your financial positions, banking facilities, income and any other information relating to the Cardholder which Liv deems appropriate without any reference to you.
- 17.2.** You agree to the processing and disclosure of your information to a subsidiary, associate, assignee, service provider, insurer, agent or delegate of a Partner or other party we deem appropriate to enable us or the Partner to perform their obligations in relation to any Credit Card.

18. Data Processing

- 18.1.** You accept that all information /instructions which will be shared by you shall be governed by the Liv Privacy Policy which can be found on the Liv App and or [www.liv.me].
- 18.2.** You hereby consent to Liv's collection, use, disclosure and processing of information in accordance with the Liv Privacy Policy, these Liv Credit Card Terms and the Terms and Conditions for Liv Services. The records of Liv (in the form of electronic data or otherwise) may be used by Liv in proceedings before a court, arbitral tribunal, regulator, or any other competent authority.

19. Your and our compliance

- 19.1.** You acknowledge and agree that we are subject to strict regulatory and legal requirements in relation to the provision of the services we offer and the operation of your Card Account. We may be obligated to take any action to prevent, or refrain from doing, which might in our opinion amount to a breach of any law, an instruction or order from a competent court or authority, any duty of care, or economic, financial or trade sanction or embargo.
- 19.2.** You confirm that you comply with and undertake to continue to comply with, all regulatory and legal obligations to which you are subject to, including (without limitation) those relating to money laundering, terrorist activity, corruption, fraud and the provision of financial or other services to individuals or entities which may be subject to sanction.
- 19.3.** You confirm that you comply with and undertake to continue to comply with, all regulatory and legal obligations to which you are subject to, including (without limitation) those relating to money laundering, terrorist activity, corruption, fraud and the provision of financial or other services to individuals or entities which may be subject to sanctions.
- 19.4.** You agree that we may take whatever action we consider appropriate to meet our obligations in the UAE or elsewhere in the world, relating to the prevention of money laundering, terrorist activity, corruption, fraud and the provisions of financial or other services to individuals or entities. This may include, but is not limited to, the freezing or suspension of the Card Account, investigating and intercepting payments to or from the Card Account.
- 19.5.** We may report any suspicious or illegal activities or transaction to the competent authorities whether in the UAE or elsewhere.

20. Use of third parties

- Liv is authorized to delegate from time to time any of its duties under these Liv Credit Card Terms to any agent, adviser or contractor appointed by Liv
- 20.1.** Liv may include, refer to or make available (a) hyperlinks to other websites; (b) content on the Internet; and (c) make available third-party channels on the Liv app that are owned or operated by third parties (each a "Third Party Service").
- 20.2.** You understand and agree that all such third-party services are not under our control, and we are neither responsible for the contents of or the consequences of accessing and such third-party service.
- 20.3.** You acknowledge and agree that the use of third-party services on the Liv app is at your own sole risk. Liv makes no warranty or representation, either express or implied about the availability, quality, accuracy or otherwise of the services so provided. Liv expressly disclaims all warranties, either express or implied, including without limitation the warranties of merchant ability, fitness for a particular purpose and noninfringement.



deposit or securities you may have (singly or jointly) with Emirates NBD Bank PJSC, to the extent of all outstanding dues, whatsoever, and howsoever arising.

22. Governing Law and Jurisdiction

These Liv Credit Card Terms are governed by and are construed in accordance with the federal laws of the UAE and the laws applicable in the Emirate of Dubai. In connection with any dispute hereunder, you irrevocably submit to the exclusive jurisdiction of the Dubai courts. Nothing shall prevent Liv from taking any action before any court of competent jurisdiction.

GLOSSARY

"Account" means your Liv Account opened with us.

"AED" means the UAE Dirham.

"ATM" means automated teller machines, which allow you to make Card Transactions.

"Card" means any physical or digital credit card issued by us to you which allows you to make Card Transactions which includes Primary, Supplementary and replacement Cards irrespective of the brand, name or scheme.

"Card Account" means the Liv credit card account opened by us for the purpose of entering all credits received and debits incurred by the Primary Cardholder and any Supplementary Cardholder and includes, without limitation, all debits resulting from any Charges.

"Card Transaction" means and includes:

- (i)** the purchase of goods, services, benefits and/or reservations by whatever means you use;
- (ii)** Cash Advances;
- (iii)** any ATM transaction effected by use of the Card; and
- (iv)** any other transaction initiated in any manner by you through the use of the Card or the Card numbers or the PIN by any means including without limitation by mail, telephone, internet or facsimile orders authorized or made by you, regardless of whether any confirmation is signed (electronically or in wet ink) by you.

"Cardholder" means any person issued a Card, including the Primary Cardholder and any Supplementary Cardholder.

"Cash Advance" means any amount obtained by the use of the Card, the Card number or the PIN from an ATM or from ENBD or any other bank or financial institution, whether in cash or other form of payment to the Card Account.

"Charges" means amounts payable by you arising from a Card Transaction or otherwise under these Liv Credit Card Terms and includes without limitation all fees, finance charges, additional expenses, damages, legal costs and disbursements, which will be debited to the Card Account.

"Credit Limit" means:

- (i)** for any digital Card issued by us through the Liv App, the temporary maximum debit balance permitted by us for the Card Account until successful completion of the KYC Process which is viewable in your Liv App; and
- (ii)** the maximum debit balance permitted by us for the Card Account and viewable in your Liv App, which we may reduce or change at any time without notifying you.

"Current Balance" means the total outstanding Charges on the Card Account payable to us according to our records on the date the Statement of Account is generated, which may not include the installment plan (if any) which will be billed in the future months.

"Direct Debit" means the standing instruction provided by you to us to debit your Account for a specified percentage of the Current Balance each month.

"ENBD" means Emirates NBD Bank (PJSC).

"Fee Schedule" means the schedule of fees and charges applicable to your Card in accordance with these Liv Credit Card Terms [as set out in the Liv App].

"Guarantee" means any guarantee or security provided by you or any third party in a form acceptable to us as security for the performance of your obligations relating to the Card, including without limitation any electronic representation of a physical cheque.

"KYC Process" means the authentication of your Emirates ID and the Primary Cardholder's provision of biometrics.

"Liv Account" means a bank account opened or to be opened using the Liv App.

"Liv App" means an application for a mobile device that can be downloaded by you from a designated location or application store.

"Liv" or "Liv" means a brand owned by ENBD. All references to Liv in these Liv Credit Card Terms would mean a reference to ENBD for all purposes.

"Liv Privacy Policy" means the Liv privacy policy made available at www.liv.me and /or through the Liv App, which describes the information Liv gathers on or through the Liv Account and Liv App and your use thereof and the steps Liv takes to protect such information.

"Merchant" means any retail outlet, person or corporate entity supplying goods and/or services who accepts your Liv Credit Card as a means of payment or reservation, as applicable.

"Minimum Payment Due" means the amount you need to pay on or before the Payment Due Date to avoid any late payment fees. The minimum amount to be paid every month includes 5% (or other percentage as specified by Liv) of the Current Balance (excluding installments), installment billed in the current month, over limit amount, past due amounts and all other applicable fees and charges.

"Month" means calendar month according to the Gregorian calendar.

Payment Due Date means the date specified in the Statement of Account by which payment of the Current Balance or at least the Minimum Payment Due is to be received by us and posted to the Card Account to keep the Card Account in good standing.

"Partner" means a third party with whom Liv has partnered to make available Rewards and/or add-on services.



"Primary Card" means a Card belonging to a Primary Cardholder.

"Primary Cardholder" means a person other than a Supplementary Cardholder who is issued a Primary Card and for whom the Card Account is first opened and issued by us.

"Statement of Account" means the monthly or other periodic statement of account for the Card Account viewable in the Liv App which shows the Current Balance payable by you to us.

"Supplementary Card" means a Card belonging to a Supplementary Cardholder.

"Supplementary Cardholder" means the person who has been issued with a Supplementary Card by us, at the request of the Primary Cardholder.

"Terms and Conditions for Liv Services" means the terms and conditions that govern the access and use of the Liv App, the Liv Account and in general Liv Services as made available at www.liv.me [and in the Liv App.]

"UAE" means United Arab Emirates.

Interpretation

In these Liv Credit Card Terms, unless the contrary intention appears:

- (i) "You" and "your" mean and include any Cardholder. "We", "we", "our" and "us" refers to Liv and its successors and assigns or to any affiliate if any services are being provided by an affiliate under these Liv Credit Card Terms.
- (ii) Singular includes the plural (and vice versa).
- (iii) Headings in these Liv Credit Card Terms are inserted for convenience of reference only and are to be ignored in construing and interpreting these Liv Credit Card Terms.
- (iv) Reference to the words "include" or "including" will be construed without limitation.
- (v) Reference to a gender will include references to the female, male and neuter genders.

By clicking and accepting you confirm that you have read, understood, acknowledged and accepted these Liv Credit Card Terms in relation to your use of the Card.

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